

motion to augment the administrative record. A review of the court's file reveals no such motion hearing has been reserved pursuant to Local Rule 20.2.

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

14. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Demurrer to the Complaint

Defendant Selene Finance, LP demurs to the first, second, third, and fourth causes of action in the initial complaint. The demurrer is denied as moot in light of plaintiff's first amended complaint filed in advance of the time to oppose the demurrer. (Code Civ. Proc., § 430.41, subd. (e)(1).)

Motion for Preliminary Injunction

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves for a preliminary injunction against defendant Selene Finance, LP ("Selene") pursuant to Code of Civil Procedure 526 and 527. Specifically, plaintiff moves for a court order requiring defendant Selene to (1) pay all homeowner's insurance premiums from plaintiff's escrow account on or before thirty days prior to each policy renewal date for the duration of this litigation and provide plaintiff with written proof of each payment within five days of disbursement; (2) refrain from enforcing, collecting, or demanding monthly mortgage payments in excess of the contracted amount of \$2,319.84 without first obtaining a court order authorizing any escrow adjustment, pending completion of the court-ordered accounting; (3) refrain from reporting any adverse credit information, initiating or advancing any foreclosure proceedings based on a delinquency, and (c) imposing any forced-placed insurance without first complying with RESPA's force-placed insurance notice requirements; and (4) maintain the status quo regarding real property at 4932 Gladding Road, Lincoln, California 95648. Selene opposes the motion.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, "the court must consider whether the party seeking the injunction is likely to prevail on the merits" and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less

severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (1984) 151 Cal.App.3d 1177.) In making its determination, the court may consider a verified complaint or affidavits. (Code Civ. Proc., § 527, subd. (a).)

As a preliminary issue, this motion was filed on July 14, 2026 when the operative pleading was the first amended complaint. However, plaintiff has since filed a second amended complaint in response to a demurrer to the first amended complaint. As this motion for preliminary injunction is based on the first amended complaint rather than the operative complaint, the motion is moot.

Even if the court could reach the merits, plaintiff's showing as to likelihood of success on the merits is insufficient. Plaintiff submits evidence by way of his declaration that the original loan servicer LoanDepot.com, LLC has been overcharging him for his monthly payments since 2021 and that defendant Selene continued the practice of overcharging him for his monthly payments when they assumed the loan in February 2026. Plaintiff also exhibits to his declaration, including the promissory note as Exhibit A and Selene's two responses to plaintiff's demand letter as Exhibits B and C. Plaintiff declares that LoanDepot.com, LLC and then Selene when it assumed the loan have been collecting escrow funds for homeowner's insurance premiums and property taxes. (Foult Decl., ¶¶ 7–8.) Just providing the promissory note does not provide sufficient evidence as to escrow amounts to be collected; accordingly, plaintiff has not shown a likelihood of success on the merits as to being overcharged. The court further observes that Exhibits A through C all appear to be submitted in partial form only, as Exhibit A is a single page with "page 1 of 3 pages" listed in the footer and Exhibits B and C appear to be cut off, ending in the middle of the letters. Moreover, plaintiff does not re-submit the exhibits he submitted with his prior motion for preliminary injunction filed on May 29, 2026, several of which he is relying on for this current motion, such as his demand letter, Selene's welcome letter, and plaintiff's demand letter. While these documents exist in the court file, plaintiff's failure to resubmit them in support of his current motion creates a notice issue for defendant to try to figure out what documents he is relying on and it creates an unnecessary burden on the court to try to do the same. In summary, plaintiff has not shown he is likely to succeed on the merits.

As to irreparable harm, the court need not address irreparable harm, but the court observes at least as to insurance premiums, plaintiff has likewise made an insufficient showing as to the second prong. Both parties acknowledge insurance premiums were paid during 2026 and it is purely speculative that defendant would fail to pay ongoing insurance obligations.

Based on the foregoing, the motion for preliminary injunction is denied.

Future Motion Hearings

Given plaintiff's second amended complaint filed on August 7, 2026, it appears to the court the following motion hearings are likewise moot and should be denied as such. The

court lists these hearings here should the parties wish to withdraw these motions:

- Plaintiff's motion for leave to file a second amended complaint (filed Aug. 25, 2026) and currently scheduled for October 6, 2026
- Defendant Selene Finance LP's demurrer to the first amended complaint (filed Jul. 29, 2026) and currently scheduled for October 6, 2026

15. S-CV-0057262 Barker, Gregory v. Barnes, Mason

Defendants' Demurrer to Complaint

Defendants' request for judicial notice is granted.

Defendants demur to the fourth cause of action alleged in the complaint for intentional interference with expected inheritance (IIEI). Plaintiff opposes this motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants contend the fourth cause of action fails because when a plaintiff already has adequate remedy in probate, an IIEI tort claim cannot proceed. (See *Beckwith v. Dahl* (2012), 205 Cal.App.4th 1039, 1052; *Halperin v. Halperin* (2026) 118 Cal.App.5th 193, 200.) In opposition plaintiff argues his remedies in probate are inadequate as in the probate matter he is unable to pursue tort remedies against defendant Barnes.

“[T]he unavailability in probate of tort damages against individual actors does not establish the inadequacy of probate and provides no basis for an IIEI claim to proceed.” (*Halperin, supra*, 118 Cal.App.5th at 203.) “The tort of intentional interference with inheritance did not arise out of a perceived need to punish alleged wrongdoers. The tort developed to protect valid testamentary expectancies and to provide a remedy when the probate process proved inadequate. The proper focus of the tort is on the just distribution of estate assets; when that can be achieved in probate, the need for the tort disappears.” (*Munn v. Briggs* (2010) 185 Cal.App.4th 578, 590 (int. quotation omitted).)

Plaintiff fails to adequately allege the absence of an adequate probate remedy. The demurrer is sustained as to the fourth cause of action for intentional interference with expected inheritance. As plaintiff fails to satisfy his burden of demonstrating the existence of additional factual allegations which could cure the deficiencies, leave to